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ఆంధ్రప్రదేశ్ आन्ध्र प्रदेश ANDHRA PRADESH

BL 876727

S.No. 10253 Date 10/07/2014 Rs. 100/-
Sold To : P. Mukunda Reddy
S/o. : Late P.C. Ranga Reddy R/o. Chennai
To Whom : Sri City (P) Ltd.

Jt SUB REGISTRAR-II
EX OFFICIO STAMP VENDOR
SATHYAVEDU

LEASE DEED

THIS LEASE DEED (**Lease Deed**) is entered into at Satyavedu on 13.07.2015

BETWEEN

Sri City (P) Limited, a company registered under the Companies Act, 1956 and having its registered office at 85, Kutchery Road, Mylapore, Chennai 600004, (having PAN AAJCS8887M and CIN U45201TN2005PTC057627), represented by its authorised signatory, Mr R Janardhana Reddy, son of late Mr N Ramanatha Reddy, aged about 63 years, (hereinafter referred to as "**the LESSOR**", which term shall, unless the context otherwise requires, mean and include its representatives, administrators, successors-in-interest and assigns on the one part)

AND

Nucleus Satellite Communications (Madras) Pvt. Ltd., a company registered under the Companies Act, 1956, having its registered office at PO 1505, Kumaran Nagar, Chemmencherry, Chennai 600 119, (having PAN AAACN9960D and CIN U74999TN1997PTC038400), represented herein by its Managing Director, Mr V Raman, (hereinafter referred to as "the LESSEE", which term shall, unless the context otherwise requires, mean and include its representatives, administrators, successors-in-interest and assigns on the other part).

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

710/2015 (Original)

Presentation Endorsement:

Presented in the Office of the Joint Sub-Registrar, Sathyavedu along with the Photographs & Thumb Impressions as required Under Section 32-A of Registration Act, 1908 and fee of Rs. 112000/- paid between the hours of 3 and 4 on the 13th day of JUL, 2015 by Sri R.Janardhana Reddy

Execution admitted by (Details of all Executants/Claimants under Sec 32A):

Sl No	Code	Thumb Impression	Photo	Address	Signature/Ink Thumb Impression
1	LE		 V.RAMAN [R] NUCLEUS SATE [1019-1-2015-721]	V.RAMAN[R]NUCLEUS SATELITE COMMUNICATIONS[MADRAS] PVT LTD . PO 1505,KUMARAN NAGAR,CHEMMENCHERRY, CHENNAI-119	For Nucleus Satellite Communications (Madras) Pvt. Ltd. V. RAMAN Managing Director
2	LR		 R.JANARDHANA REDDY [R] SRI CIT [1019-1-2015-721]	R.JANARDHANA REDDY[R]SRI CITY [P] LIMITED . NO.85,KUTCHERY ROAD,MYLAPORE, CHENNAI-04	For SRICITY PRIVATE LIMITED Authorised Signatory

Identified by Witness:

Sl No	Thumb Impression	Photo	Name & Address	Signature
1		 K.BALAJI:01/01/2002 19:41 [1019-1-2015-721]	K.BALAJI S/O K.SUDHAKAR,GAYATHRI NAGAR,KOTAPULLORE ROAD,SULLURPET	
2		 NAVNEETH RAMAN: 01/01/2002 [1019-1-2015-721]	NAVNEETH RAMAN S/O V.RAMAN,P1,4TH FLOOR,WHITE HOUSE,NEW NO.48,GANDHI NAGAR,ADIAR,CHENNAI-20	

Bk - 1, CS No 721/2015 & Doct No 710/2015. Sheet 1 of 18 JOINT SUBREGISTRAR246 Sathyavedu

13th day of July,2015

Signature of JOINT SUBREGISTRAR246
Sathyavedu

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OFFICE OF (The Seal of Joint SubRegistrar Office Sathyavedu) JOINT SUBREGISTRAR

WHEREAS:

a. The LESSOR owns lands in Satyavedu and Varadaiahpalem Mandals of Chittoor District, Andhra Pradesh, for the development of mixed (commercial, residential and recreational) and integrated industrial park consisting of Special Economic Zone (SEZ), Domestic Tariff Zone (DTZ) and Free Trade Warehousing Zone (FTWZ) (collectively referred to as "Sri City") and has obtained requisite approvals for such development.

b. The LESSOR acquired, amongst other lands, the lands comprised in Survey Nos.239/2 measuring an extent of 0.30 acres of Dry land,Sy.No.239/3 measuring an extent of 0.98 acres of Dry land, Sy.No.244 measuring an extent of 0.48 acres of Dry land, Sy.No.245/1 measuring an extent of 1.18 acres of Dry land,Sy.No.245/2 measuring an extent of 1.11 acres of Dry land, Sy.No.246/2 measuring an extent of 0.33 acres of Dry land,Sy.No.246/3 measuring an extent of 0.10 acres of Dry land under Sale Deed registered as Doc.No.701/2007 dated:10.05.2007 in the office of the Sub-Registrar, Sathyavedu and Sy.Nos.242 measuring an extent of 2.52 acres of Dry land,Sy.No.243 measuring an extent of 0.34 acres of Dry land,Sy.No.205/3 measuring an extent of 0.16 acres of Dry land,Sy.No.206 measuring an extent of 2.13 acres of Dry land,Sy.No.207 measuring an extent of 3.56 acres of Dry land,Sy.No.247/9 measuring an extent of 0.34 acres of Dry land,Sy.No.247/15 measuring an extent of 1.99 acres of Dry land,Sy.No.247/16 measuring an extent of 0.68 acres,Sy.No.247/18 measuring an extent of 0.32 acres of Dry land,Sy.No.247/19 measuring an extent of 0.19 acres of Dry land,Sy.No.247/20 measuring an extent of 0.44 acres of Dry land under Sale Deed registered as Doc. No.1827/2007 dated 07.12.2007 in the office of Sub-Registrar, Satyavedu.

c. The LESSEE approached the Lessor for taking on lease 8 acres of land in DTZ, forming part of the lands aforementioned, on lease basis more particularly described in the Schedule hereunder and earmarked in Annexures hereto (hereinafter referred to as the 'Lease Land'), for the purpose of establishing a light engineering manufacturing facility on the Lease Land; and the LESSEE also acknowledged the representation of the LESSOR that wherever possible people from the local area are to be given employment in the manufacturing facility, at least up to 10% of the work force, if found suitable for the desired employment openings by the LESSEE; preference shall be given to rural women for employment. The Lessor agreed to give on lease the Lease Land to the LESSEE.

d. For the purposes of service, operation & maintenance of common facilities and amenities, in the common area and open space in Sri City, the LESSEE has agreed to avail the services and maintenance of common facilities and amenities to be provided by the LESSOR.

e. The parties desired to reduce their understanding into writing as under.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

Endorsement:

Description of Fee/Duty	In the Form of					
	Stamp Papers	Challan u/s 41of IS Act	Cash	Stamp Duty u/s 16 of IS act	DD/BC/ Pay Order	Total
Stamp Duty	100	672000	0		0	672100
Transfer Duty	NA	0	0		0	0
Reg. Fee	NA	112000	0		0	112000
User Charges	NA	500	0		0	500
Total	100	784500	0		0	**784600**

Rs. 672000/- towards Stamp Duty including T.D under Section 41 of I.S. Act, 1899 and Rs. 112000/- towards Registration Fees on the chargeable value of Rs. 11200000/- was paid by the party through Challan/BC/Pay Order No ,9 dated ,13-JUL-15.

Date
13th day of July,2015

Signature of Registering Officer
Sathyavedu

Certificate of Registration

Registered as document no. 710 of 2015 of Book-1 and assigned the identification number 1 - 1019 - 710 - 2015 for Scanning on 13-JUL-15 .

Registering Officer
Sathyavedu
(O.Sudhakar)

Bk - 1, CS No 721/2015 & Doct No 710/2015. Sheet 2 of18 JOINT SUBREGISTRAR246 Sathyavedu

గమనిక:- ఈ దస్తావేజు కింద కుంటెనక్క రవి తిరుపతిరాయుడు చిరునామా

సంతకం: సత్యవేడు
తేదీ: 13/7/15

సబ్ రిజిస్ట్రార్

స్కాండ్ సర్టిఫికేట్
దస్తావేజు 1019-1710 -2015 ను
ఐడెంటిఫికేషన్ నెంబరుతో స్కాన్ చేయబడినది.

అసిస్టెంట్ సబ్ రిజిస్ట్రార్

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OFFICE OF The Seal of Joint SubRegistrar Office Sathyavedu JOINT SUBREGISTRAR

NOW THEREFORE THIS LEASE DEED WITNESSETH AS FOLLOWS:

1. **LEASE FOR 99 YEARS**

(a) The LESSOR agrees to give and the LESSEE agrees to take on lease, the Lease Land for a period of ninety-nine (99) years from the date of execution of the Lease Deed ("Lease Period") for the purpose of establishing/setting-up a facility aforementioned.

2. **LEASE AMOUNT**

(a) In lieu of lease hereby granted, the LESSEE agrees to the LESSOR a one-time non-refundable lease premium of Rs.1,12,00,000/- (Rupees one crore twelve lakhs only) for the Lease Land paid in the following manner the receipt of which the LESSOR acknowledges and admits:

a. Rs.22,40,000/- (Rupees twenty two lakhs forty thousand only) paid through transfer under reference UTR No. IBKLR92015022800079481 on 28.02.2015 and UTR No. IBKLR92015032600054393 on 26.03.2015, and

b. The balance sum of Rs.94,08,000/- (Rupees ninety four lakhs eight thousand only) (after applicable service tax and TDS) paid vide demand draft bearing No. 007244 dated 11.7.15 from IDBI Bank, _____ Branch, as of the date of the execution of the Lease Deed.

(b) On and from the date of this Lease Deed, the LESSEE shall pay all applicable present or future taxes (by whatever name it may be called and identified). Service tax, along with interest, if any, applicable will be borne by the LESSEE.

3. **HANDING OVER OF POSSESSION**

(a) The LESSOR has handed over the vacant possession of the Lease Land to the LESSEE on this day which the LESSEE acknowledges and admits.

4. **LESSEE'S COVENANTS**

The LESSEE hereby covenants and agrees to abide by the following:

(a) That the LESSEE shall utilise the Lease Land only for the purpose for which it is leased and as detailed herein below. In the event that the LESSEE changes the purpose for which the Lease Land has been leased, then it shall do so only with the prior approval in writing, of the LESSOR. It is expressly understood

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

and agreed that the LESSEE shall not pursue or intend to pursue any business in the Lease Land falling outside the Approved Industries described herein below.

i) The LESSEE shall be permitted to construct, within the Lease Land facilities that are needed for carrying on its designated business aforementioned, facility consisting of :

a. Core Business Facilities, which shall mean Office Buildings and manufacturing facilities – shop floors, Effluent Treatment plant, storage facilities, etc.
b. Business Support Utilities and Facilities, which shall mean Data centres, Telecom Hubs, Electrical Substations, Generator Rooms, Security Rooms, Parking Lots, Training Centres, and Seminar Hall.
c. Employee Welfare Facilities which shall mean the facilities created exclusively for the welfare of the employees of the LESSEE and shall mean canteens, crèche, first aid centres and security towers / cabins.
d. Landscaping Elements, which shall mean greenery features within the Lease Land including avenue trees, shrubs, lawns and street furniture such as bus stops, benches, garbage bins and lamp posts.

ii) The Approved Industries for the Lease Land shall be any industry that is permitted to be set up within the DTZ as per notifications of Central / State Government and in conformity with the Andhra Pradesh Pollution Control Board rules and regulations.

(b) That the LESSEE shall have the right only to utilise the surface of the soil. The LESSEE is entitled to carry out excavation work only to the extent required for construction of buildings, landscaping, creation of internal roads, canteens, employee welfare facilities on the Lease Land as per the approved plans. It is agreed that the LESSEE shall not have any right beneath the surface of the soil including earth, underground water, streams, channels, mines, minerals, oils, precious stones, artefacts and shall not be entitled to dig wells and / or bore wells for sourcing water from the Lease Land.

(c) That the LESSEE shall construct the buildings / structures in conformity with the "Planning and Building Rules" laid down by the Industrial Area Local Authority, IALA (which shall mean rules and regulations that are applicable to development and building activity in the DTZ as per applicable law) and the Development Control Regulation laid down by the LESSOR in respect of the Lease Land such as:

i) In addition to making provision for setback area and green buffer area, as required under applicable law, on all sides of the Lease Land, 1 meter tree line

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shall be provided, within the Lease Land, along the four sides of the boundary wall of the Lease Land.

ii) All lines for electricity, telephone and data shall be below the surface of the ground.

iii) Signage on buildings within the Lease Land shall be permitted as per applicable law. Hoardings and advertisements are not permitted within the Lease Land or on the common areas and roads without the approval of LESSOR.

iv) In an effort to regulate parking, vehicles shall be parked only within the Lease Land or in areas that are specifically designated as parking zones.

v) The compound wall abutting a road shall not be higher than 1.8 metres. If additional height is required, it shall be with grill or chain link fencing.

vi) All DTZ occupants are required to incorporate rainwater harvesting within the site.

vii) Prior to development or redevelopment of a building (including alterations) a notice should be given to LESSOR, in writing, stating the intention along with a complete set of documents and drawings and a written permission for such development or redevelopment has to be obtained from the LESSOR. That the LESSEE shall, at its own cost, construct and maintain internal roads within the Lease Land in accordance with the plans, specifications and details prescribed in the Planning and Building Rules.

(d) The LESSEE agrees that it (i) shall apply for and obtain all necessary approvals required for construction of its manufacturing facility within 6 months from the date of execution of this Lease Deed; (ii) shall commence construction of the said manufacturing facility immediately upon receipt of the said approvals or before the end of the first year from the date of execution of this Lease Deed, whichever is earlier; and (iii) shall intimate to the LESSOR, in writing within 7 days from the date of completion, that it has completed construction of its manufacturing facility. The LESSEE further agrees that it shall be deemed to have fulfilled this condition only upon receipt of a certificate from the LESSOR to this effect, which certificate will be issued by the LESSOR within 3 days from the date of such intimation or LESSOR's inspection, whichever is earlier. As a matter of referral procedure, the LESSOR shall provide the LESSEE with list of contractors (building, civil, etc.); and the cost/expense/fee for engagement of such contractors shall be borne by the LESSEE.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

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(e) That the LESSEE shall properly preserve and keep in good repair all boundary pillars demarcating the boundaries of the Lease Land and shall comply with the General Guidelines of the LESSOR.

(f) That the LESSEE shall not put up any temporary or semi-permanent structure on the Lease Land except during the period of construction or reconstruction of the same. Such temporary structures shall be dismantled / removed upon the LESSEE commencing its business operations.

(g) That the LESSEE shall not carry out any permanent construction with thatch or inflammable materials on the Lease Land.

(h) That the LESSEE shall design sewer lines and water lines in such a way that they are connected to the common lines in the DTZ at points designated by the LESSOR.

(i) That the LESSEE shall use only the treated water for gardening, landscaping, flushing, cooling & similar purposes in the Lease Land.

(j) That the LESSEE shall make its own arrangements to drain the rainwater from the Lease Land into the common storm water drains provided in the DTZ and shall install a rain water harvesting mechanism in the Lease Land.

(k) That the LESSEE shall make its own arrangements to treat the effluents (solid / liquid) and regulate dust, smoke, gas, noise, vibrations, to the required standards fixed by the Andhra Pradesh Pollution Control Board and the municipal sewerage norms from time to time. Only such duly treated liquid wastes, conforming to the prescribed standards prevailing from time to time, shall be discharged into the sewerage system of the said DTZ. Before the application for the connection is made to the LESSOR, the LESSEE shall produce necessary clearances from the Pollution Control Board, if required under law and shall ensure that such clearances remain in force at all points of time and the LESSOR shall have the right to check the standard of the Sewerage before it is connected to the sewerage system and any dispute regarding it, the decision of the LESSOR shall be final.

(l) That the LESSEE shall be responsible and liable for all losses, damages and claims of third parties arising out of or attributable to or in connection with the usage of the Lease Land or the business activities of the LESSEE.

(m) That the LESSEE shall keep the buildings and its surroundings clean, free from defect and in good repair and not allow accumulation of water in the Lease Land.

(n) That the LESSEE shall not permit the Lease Land to be used for any purpose, which may be obnoxious, offensive or hazardous by reasons of deposits of solid

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matter or emission of odour, liquid, dust, smoke, gas, noise vibrations or fire hazards or which may cause permanent damage to the Lease Land.

(o) That the LESSEE shall not carry on any activity that is offensive, or is the source of any annoyance, inconvenience or nuisance, provided that use of the Lease Land on a 24 x7x365 basis during the Lease Period shall not constitute violation of this clause.

(p) That the LESSEE shall dispose debris or any solid / liquid waste materials in accordance with applicable law and at the places designated by the LESSOR.

(q) That the LESSEE shall provide the required fire-fighting arrangements within the Lease Land/Building in accordance with applicable law.

(r) That the LESSEE shall not allow the Lease Land and/or building to be used as a place of public worship or burial or cremation ground, private or public, or allow any shrine or structure of religious nature.

(s) That the LESSEE shall observe, perform, and comply with the regulations in respect of Lease Land and buildings in accordance with the applicable law and the Development Control Regulation specified herein.

(t) On and from the date of execution of this Lease Deed, in the event of the LESSEE commits any violation of any of the statutory requirements implemented by the Central/State Governments and local bodies, then any notice issued for such violation either by any statutory body/the LESSOR, then the LESSEE shall rectify such violation within 30 days from the receipt of such notice or as may be reasonably required and mutually agreed. In the event of non-rectification by the LESSEE after the stipulated time limit, then the lease shall be terminated without any further notice, however after expiry of further notice period of 90 days issued by the LESSOR. In case such violation can be rectified by the LESSOR, then the same can be carried out by the LESSOR and the cost and damages caused due to such rectification, shall be indemnified by the LESSEE.

(u) The LESSEE shall not sub-divide or sub-lease the Lease Land or allow any buildings to be constructed thereon either by third parties or for the use of third parties, since the lease is specifically granted to the LESSEE alone and in the event of any assignment or sub-lease, then the LESSOR shall terminate the lease arrangements. The LESSEE shall be entitled to transfer the Lease Land in favour of a third party provided that the LESSEE shall offer a first right of refusal to the LESSOR to take back the Lease Land. In case of transfer of the Lease Land, either in part, parts or in full, in one or more transactions, to a third party in accordance with this clause, the LESSEE shall pay a transfer fee of 15% of the total consideration agreed with such transferee and documented for the portion

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of the Lease Land along with infrastructure therefor proposed to be so transferred. In case of transfer to a group Company/Affiliate of the LESSEE, the transfer fee shall be nil, provided only as long as the said group Company/Affiliate remain to be so, and immediate upon any change in such status, then 15% transfer fee as mentioned herein shall be applicable. Further, in the event of any such transfer as agreed aforementioned, the LESSEE shall cause the transferee to execute required document with the LESSOR envisaging applicable terms & conditions of this Lease Deed, charges payable by the transferee, etc., governing the transfer and use of such transferred land by the said transferee.

(v) That the LESSEE shall duly and punctually fulfil its obligations for availing any services from the LESSOR in connection with the usage of the Lease Land by agreement or otherwise.

(w) That the LESSEE shall comply with applicable laws and obtain all statutory clearances and keep in force all clearances as may be required by it for the purpose of carrying on its business.

(x) That the LESSEE shall at all times comply with the requirements of Labour legislations including the Contract Labour (Regulation & Abolition) Act, 1970, if applicable, during the construction phase and during the operations of the business. The LESSOR shall not in any way be responsible or liable for any non-compliance or default.

(y) That the LESSEE is aware that the Lease Land lies within the DTZ and the LESSEE agrees to abide by the applicable laws, rules & regulations therefor.

(z) The LESSEE shall pay all the required current and future applicable tax for the smooth running of the Approved Business in the Leased Land and the LESSOR shall pay the Property tax and other current and future levies that might become applicable with regard to the Lease Land. The LESSEE shall pay all required and applicable taxes for the smooth running of the Approved Business in the Lease Land. The LESSOR shall not in any way be responsible or liable for the non compliance or default.

(aa) The LESSEE shall maintain the trees in good condition and shall not cut the trees. The LESSOR has the right to cut the trees at any point of time during the Lease Period and take the remains should the LESSOR wish. In case LESSEE wants to take over the right to the trees they shall get the prior permission of the LESSOR for which LESSOR shall require LESSEE to pay the appropriate charges.

(bb) LESSEE will give all the earth work (excavation and filling) to LESSOR only and the LESSEE will require the LESSOR to match the market rates.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

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(cc) Wherever practicable, the LESSEE shall emboss or imprint on all of its products (either on each item or on the carton when packed in bulk) that are manufactured in its facility situated at the property of the LESSOR, i.e., the Lease Land, wordings to the effect that the said products are made in "***Sri City, A.P., India***".

(dd) The LESSEE understands and agrees that any appropriate authority/the LESSOR has the authority to acquire land for, and to provide, public utilities such as road, sewage, water, rainwater harvesting, etc; and that in the case of any work is required to be carried out through the Lease Land in connection with such public utilities, the any appropriate authority/the LESSOR shall be allowed to carry out the same; however, such work will be carried out without causing any damage to the building, plant and machinery put up by the LESSEE on the Lease Land.

(ee) The LESSEE understands that the LESSOR may require data pertaining to exemption benefits, if any, availed by the LESSEE for its business operations carried out in the Lease Land, as may be required under the applicable statutes, and at the request of the LESSOR, the LESSEE shall provide them with such details.

5. LESSOR'S COVENANTS

The LESSOR hereby covenants and agrees as follows:

(a) That during the Lease Period, it shall not seek to enforce or exercise any right of any nature beneath the surface of the soil in the Lease Land including earth, underground water, streams, channels, mines, minerals, oils, precious stones, artefacts provided that if every pre-identified water source were to run dry, consequent upon which the LESSOR is deprived or unable to access water from such sources in its land in Sri City (except the Lease Land) both parties agree to mutually discuss alternate solutions to procurement of water, including sourcing underground water resources within the Lease Land, provided such sourcing within the Lease Land shall be restricted to available open spaces to be identified by competent technical experts. Infrastructure for power up to 1,000 KVA and infrastructure for & supply of water up to 100 KL/Day will be provided. Any additional requirement by the LESSEE shall be made available by the LESSOR at such cost, expenses, deposits & charges to be paid by the LESSEE towards provision, installation, connection & consumption respectively.

(b) That the LESSEE shall have uninterrupted and unhindered right of ingress into Sri City and the Lease Land and egress from the same at all times on a 24x7x365 basis, however the LESSOR shall have the right to check the ingress and egress for security purpose.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

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(c) That the Lease Land is not subject to any mortgage, lien, charge or similar or other encumbrance and that the LESSOR shall not encumber the Lease Land in any manner whatsoever during the Lease Period.

(d) That subject to the LESSEE not being in breach of its obligations and covenants enumerated herein, the LESSEE shall be entitled to quiet and peaceful possession and enjoyment of the Lease Land and the buildings thereon without any unlawful interruption or interference by the LESSOR, its agents, servants, employees, contractors or any person claiming through or under it.

(e) Any due/s and/or compensation payable for the Lease Land till the date of execution of this Lease Deed shall be payable only by the LESSOR.

6. **RIGHTS OF THE LESSEE**

Subject to the LESSEE having performed its obligations and not being in breach of any covenant or obligations enumerated herein, the LESSEE shall be:

(a) entitled to peaceful possession, use and enjoyment of the Lease Land without any interruption, obstruction, or interference by the LESSOR, its agents, servants, employees, contractors or any persons claiming through or under it;

(b) entitled to at its cost / expense obtain electricity / power connection and install telecommunication facilities, including satellite links, towers, dish antennas and other similar equipment on the Lease Land and / or the buildings constructed therein for the operation of the business purpose for which the Lease Land is leased;

(c) entitled to erect sign boards, name boards within the Lease Land as it may deem necessary and in conformity with the Development Control Regulation specified hereinabove;

(d) entitled to apply for and obtain any benefit, concession, privilege, declarations that may be currently available or become available in future under any statute, rule, regulation, scheme or notification in relation to the Lease Land and/or business for which the LESSOR shall issue statutorily prescribed certificates, documents, consent letters, or similar communications whenever required by the LESSEE.

(e) In the event of the LESSEE requiring to mortgage its lease hold rights in respect of the Lease Land for raising any loans, it shall obtain a consent letter from the LESSOR, which consent shall not be unreasonably withheld. The consent letter issued by the LESSOR shall be without prejudice to its right of termination available to the LESSOR herein.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

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LESSOR

7. **RIGHT OF ENTRY**

(a) The LESSOR and its authorised representatives or any other persons duly authorised by it shall have the right to enter upon and inspect/visit the Lease Land and the buildings thereon during the currency of the lease, subject to issuance of prior written notice to the LESSEE (except during emergency situation, when no notice is required) and complying with the LESSEE'S security regulations in force, who shall allow the LESSOR at all reasonable times.

8. **ASSIGNMENT / SUB-LETTING**

(a) The LESSEE shall not assign, sub-let, transfer or otherwise part with its interest including the building to be constructed either in whole or in part except with the prior written consent of the LESSOR as provided herein.

9. **INDEMNITY**

(a) The LESSEE shall indemnify and keep the LESSOR indemnified against any and all losses, claims or damages which may be caused by any of the following:

i. Breach of terms & conditions herein;

ii. damages to the common facilities and amenities in the DTZ for any reasons / causes attributable to the LESSEE;

iii. failure by the LESSEE to comply with applicable laws;

iv. failure by the LESSEE to obtain or keep in force all statutory clearances and

v. failure by the LESSEE to comply with the Andhra Pradesh Pollution Control Board standards as may be in force from time to time;

(b) Notwithstanding anything mentioned under this Lease Deed, subject to the limit not exceeding the lease premium paid by the LESSEE under this Lease Deed, the LESSOR shall indemnify and keep the LESSEE indemnified against any or all losses, caused only by reasons related to title / ownership issues pertaining to the Lease Land.

10. **TERMINATION**

(a) In the event of non-compliance or breach of any of the terms and conditions or covenants of this Lease Deed by the LESSEE, the LESSOR shall call upon the LESSEE by issuing a written notice giving the LESSEE 60 days to comply or remedy the breach from the date of receipt of the notice. In case of failure on

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For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

the part of the LESSEE to comply / remedy the breach within the above stipulated period, the LESSOR shall have the right to terminate this Lease Deed by giving 30 days written notice to the LESSEE.

(b) In the event of termination as aforesaid or on the expiry of the term of this lease, the LESSEE shall surrender all its rights granted under this Lease Deed and hand over possession of the Lease Land without the buildings situated thereon without demur or any protest and this Lease Deed shall stand rescinded and be of no effect. Mortgage if any, created on the lease hold right shall terminate automatically upon expiry or termination whichever is earlier of the Lease Period and the lender and the lessee shall have no rights over the Lease Land in any manner after the expiry of the Lease Period or termination. On termination of this Lease Deed, the LESSOR shall have the unfettered right to re-enter the Lease Land without the intervention of the court and reserving its right to legal remedies for possession and damages, if any. The rights of termination for breach as aforesaid shall be available to the LESSOR notwithstanding anything to the contrary stated in this Lease Deed and without prejudice to any of its other rights and remedies available to the LESSOR under this Lease Deed, or in law and / or in equity. The LESSEE is not entitled to any compensation for any of the construction on the Lease Land or refund of any amount paid or portion thereof under this Lease Deed.

11. COMPULSORY ACQUISITION

(a) Both parties herein agree that in the event of any compulsory acquisition of the Lease Land (or part thereof) and/or the buildings constructed thereon, by the Government or any appropriate authority under any statute, rule, regulation, ordinance, etc., the LESSOR and the LESSEE shall be entitled to compensation paid by the said Government / appropriate authority, as per details given below:

a) As regards the building, irrespective of the year of acquisition, the LESSEE shall be entitled to the entire compensation paid towards the building.

b) As regards the Lease Land, the compensation received shall be shared between the LESSOR and the LESSEE in proportion to the expired and unexpired portion of the Lease Period respectively – i.e., (for e.g.,) if the acquisition were to happen in the 5th year, the LESSOR would be entitled to compensation for 5 years (the expired portion) and the LESSEE would be entitled to compensation for 94 years (the unexpired portion).

(b) The compensation so paid by the Government or appropriate authority shall be calculated based on per-acre basis and shall be paid to the LESSEE as agreed hereinabove.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

12. **WAIVER**

(a) Waiver by either party of any default by the other party in the performance of any provisions of this Lease Deed shall not operate or be construed as a waiver of any other default or further default and shall not be effective unless it is in writing and executed by a duly authorised representative of the party. Neither the failure by either party to insist on any occasion upon the performance of the terms, conditions and provisions of this Lease Deed nor time or other indulgence granted by any party to the other party shall act as a waiver of such breach or acceptance of any variation or the relinquishment of any such right or any other right hereunder, which shall remain in full force and effect.

13. SEVERABILITY

(a) If any clause or provision of this Lease Deed is held or declared invalid or unenforceable or illegal for any reason, this Lease Deed will remain otherwise in full force apart from such clause or provision which will be deemed to be deleted.

14. **FORCE MAJEURE**

(a) Neither party to this Lease Deed shall be liable for any failure or delay in performing its obligations under this Lease Deed, if such failure or delay is caused by conditions beyond its control including but not limited to Acts of God, Government restrictions, wars, insurrections, riots, floods, earthquakes, fires, epidemics, or any other causes beyond the control of such party and all such obligations shall stand suspended and or kept in abeyance until status quo ante is restored.

(b) The party affected by Force Majeure condition shall forthwith notify the other party of the nature and extent thereof and shall make best efforts to mitigate such condition.

15. **NOTICES**

(a) Any notice or communication of any nature required to be sent by one party to the other shall be sent by registered post or courier to the addresses mentioned hereinabove or by e-mail at the following ids, addressed to the attention of the person mentioned below. Either party may change the contact details given herein by giving the other one week prior written notice.

i. To the LESSOR - Mr R Nagarajan, CFO / Email: nagarajan.r@sricity.in
ii. To the LESSEE – Mr V Raman, CEO / Email: raman@nucsat.com

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

16. DISPUTE RESOLUTION & ARBITRATION

(a) In the event of any disputes or differences between the parties arising out of or in connection with this Deed or with regard to performance of any obligations by either party, the parties hereto shall use their best efforts to resolve such disputes or differences amicably by mutual negotiations.

(b) All disputes arising in connection with this Deed that have not been amicably settled, within 30 days of occurrence thereof or as may be mutually agreed, shall be referred to arbitration. Each of the parties is entitled to appoint one Arbitrator and the presiding Arbitrator shall be appointed by the two Arbitrators. The Arbitration shall be as per the provisions of the Arbitration and Conciliation Act, 1996 (with such statutory amendment / modification thereof). The Arbitration shall be conducted in the English language and the seat of such Arbitration shall be in Chennai, India. The costs shall be as determined by the Arbitrators.

17. EXPIRY BY EFFLUX OF TIME

(a) Upon expiry or by Termination by the LESSOR, of this Lease by efflux of time, the LESSEE shall peaceably quit and deliver vacant possession of the Lease Land to the LESSOR, after removing the buildings and constructions and other facilities thereon together with all fittings, fixtures, contained within the Buildings and restoring the Lease Land to its original state without causing any damages to the provisions made for the common facilities like drain, water, electricity etc. Mortgage if any, created on the lease hold right shall terminate automatically upon expiry of the Lease Period and the lender and the lessee shall have no rights to the Lease Land in any manner after the expiry of the Lease Period.

18. JURISDICTION

(a) This Lease Deed shall be governed in accordance with laws of India. Subject to the above arbitration provision, the Courts situated at Chittoor District and their appeal Courts shall have the competent jurisdiction in respect of matters arising under this Lease Deed.

19. COUNTERPART

(a) This Lease Deed is executed in duplicate and the original of the same shall be retained by the LESSEE and the duplicate thereof by the LESSOR.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

SCHEDULE

Chittoor District, Sri Balaji Registration District, Sathyavedu Sub-District,Varadaiahpalem Mandal, Racherla Gram Panchayat of Mopurupalli Village accounts-Bearing survey numbers listed below:

S.No.	Survey No.	Full Extent	Allotted Extent	Classification
1.	239/2	0.30	0.05	Dry
2.	239/3	0.98	0.07	Dry
3.	242	2.52	0.05	Dry
4.	243	0.34	0.26	Dry
5.	244	0.48	0.05	Dry
6.	245/1	1.18	1.18	Dry
7.	245/2	1.11	1.11	Dry
8.	246/2	0.33	0.28	Dry
9.	246/3	0.10	0.10	Dry
10.	205/3	0.16	0.07	Dry
11.	206	2.13	1.67	Dry
12.	207	3.56	1.46	Dry
13.	247/9	0.34	0.19	Dry
14.	247/15	1.99	0.29	Dry
15.	247/16	0.68	0.30	Dry
16.	247/18	0.32	0.32	Dry
17.	247/19	0.19	0.19	Dry
18.	247/20	0.44	0.36	Dry
		Total	**8.00**	

Bounded on the:

North by	:	37.09m Cypipagel Boundary from North-East Corner & balance Sri City Land
South by	:	Sri City Land
East by	:	18 ROW from North-East Corner & 103.49m Be'Rollex Boundary & balance Sri City Land
West by	:	Sri City Land

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS LEASE DEED ON THE DAY, MONTH AND YEAR FIRST HEREIN ABOVE MENTIONED.

For Nucleus Satellite Communications

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

Authorised Signatory
V Raman
Managing Director

For Sri City (P) Ltd.,

For SRICITY PRIVATE LIMITED

Authorised Signatory

Authorised Signatory
R Janardhana Reddy

CHENNAI 600 119

SRICITY PRIVATE LIMITED

WITNESSES:

1. Signature, Name & Address

C. Balaji
S/o C. Sudhakar
Gayathri Nagar
Kotapalli mad
Srikalahasti
Nellore Dt

2. Signature, Name & Address

NAVNEET RAMAN
P1, 4th FLOOR, WHITE HOUSE, NEW NO 48,
GANDHI NAGAR, ADYAR, CHENNAI 20.

Prepared by : J. Venkat

J.Venkatakrishnaiah S/o J.Chenchulu,Gandhi Road, Sathyavedu.

Annexure

Location map for Nucleus Satellite Communications (M) Pvt Ltd. - DTA

For Nucleus Satellite Communi... (Madras) Pv... Ltd.

V. RAMAN
Managing Director
LESSEE

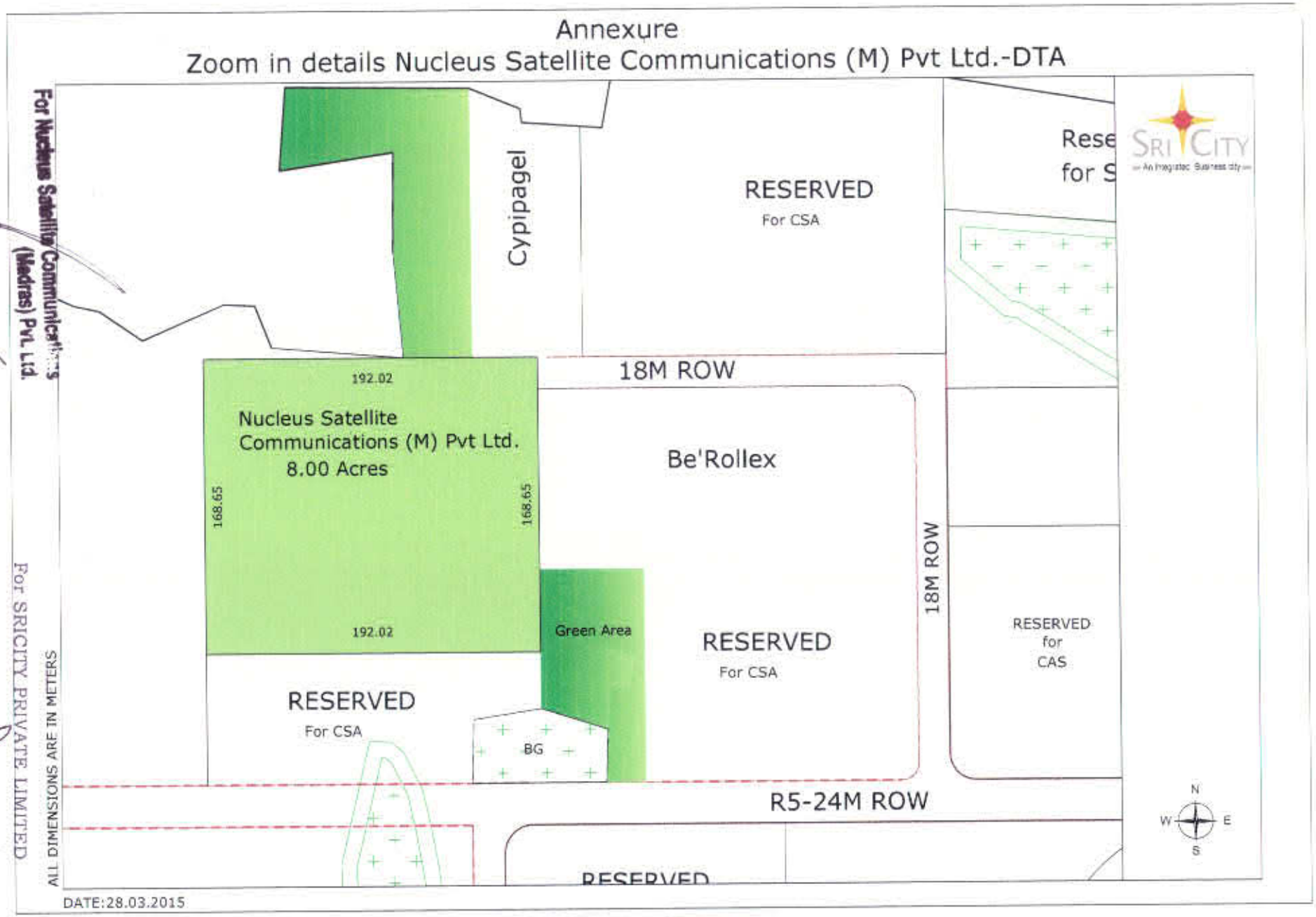
For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR

Annexure

Zoom in details Nucleus Satellite Communications (M) Pvt Ltd.-DTA



For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director
LESSEE

For SRICITY PRIVATE LIMITED

Authorised Signatory

LESSOR